

Smt. Jaikuwar vs Smt. Ramkripa Yadav on 16 January, 2024

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR

SA No. 134 of 2020
(SMT. JAIKUWAR AND OTHERS Vs SMT. RAMKRIPA YADAV AND OTHERS)

Dated : 16-01-2024

Shri Hussain Ali Safi- Advocate for the appellant.

Shri Aseem Kumar Dixit - Advocate for respondent Nos.1 to 4

Shri Ramanuj Choubey - Panel Lawyer for respondent/State.

Record is received.

Heard on admission.

The appeal is admitted on the following substantial questions of law :-

" 1 . Whether kuvarbai had any share in Mangal Singh property in view of Section 14 of Hindu Succession Act, 1956 and after death of Kuvarbai whether appellant No.1 has right in suit land in view of Section 16 of Hindu Marriage Act, 1955?

2. In absence of any plea in the written statement that Munni Devi was alive when Mangal kept Kuvarbai and in absence of any denial in the written statement that Munni Bai predeceased Mangal Singh whether Lower Appellate Court was right in holding that Munni Bai was alive when Mangal kept Kuvarbai and that marriage between Mangal Singh and Kuvarbai is void thereby travelling out of the pleadings and subsequently decreeing the suit on the basis of the evidence which was at variance with pleadings?"

Issue notice to respondents on payment of P.F. within seven working days by RAD mode.

(GAJENDRA SINGH) JUDGE PG